



CHAPTER xxx.

An Act to empower the lord mayor, aldermen and citizens of the city and county of Kingston upon Hull to construct a street improvement to enlarge the borrowing powers for the purposes of their water undertaking to make further provision for the prevention of floods and for other purposes.

A.D. 1925.

[30th June 1925.]

WHEREAS it is expedient to empower the lord mayor, aldermen and citizens of the city and county of Kingston upon Hull (in this Act called "the Corporation") to construct the street improvement authorised by this Act:

And whereas it is expedient to enlarge the borrowing powers of the Corporation for the purposes of their water undertaking:

And whereas it is expedient to make provision for the prevention of floods by the overflow of the River Hull:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows:—

The construction of the street improvement authorised by this Act	£
-	3,300

[Price 6d. Net.]

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The extension and improvement of the £
Cottingham pumping station of the
Corporation in the urban district of
Cottingham and the deepening and
extension of the shafts and adits in
connection therewith - - - - 250,000

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the Corporation should be empowered to borrow money for those purposes as provided by this Act :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans and sections showing the lines and levels of the work authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the respective clerks of the peace for the east riding of Yorkshire and for the city and county of Kingston upon Hull and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Kingston upon Hull Corporation Act 1925.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows (that is to say) :—

Part I.—Preliminary.

Part II.—Lands and street improvement.

Part III.—Finance.

Part IV.—Miscellaneous.

3. The Lands Clauses Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act with the following exception and modification namely :—

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—
Incorporation of Acts.

(1) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act :

(2) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated therewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Interpretation.

(2) In this Act unless the subject or context otherwise requires—

(a) “The Corporation” means the lord mayor aldermen and citizens of the city and county of Kingston upon Hull;

(b) “The city” means the city and county of Kingston upon Hull;

(c) “The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund the borough rate the district fund and the general district rate of the city;

(d) “The Lands Clauses Acts” means the Lands Clauses Acts as amended by the Acquisition of Land (Assessment of Compensation) Act 1919.

PART II.

LANDS AND STREET IMPROVEMENT.

5. Subject to the provisions and for the purposes of this Act (including the provision of space for the erection of buildings adjoining or near to any street) the Corporation may enter on take appropriate and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference.

Acquisition of lands.

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Period for compulsory purchase of works.

Power to make street improvement.

6. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the thirty-first day of December nineteen hundred and twenty-five.

7. Subject to the provisions of this Act the Corporation may in the lines and according to the levels shown upon the deposited plans and sections relating thereto make and maintain in the city the work hereinafter mentioned with all proper and necessary works and conveniences in connection therewith (that is to say) :—

Work No. 9. A widening and improvement of Regent Street on both sides thereof commencing at its junction with Hesse Road and terminating at a point one hundred and fifty-seven yards or thereabouts measured in a north-westerly direction from Cranbourne Terrace.

Power to deviate.

8. The Corporation in constructing the work authorised by this Act may deviate to any extent not exceeding the limits of deviation shown on the deposited plans and may deviate from the levels shown on the deposited sections to any extent not exceeding five feet.

PART III.

FINANCE.

Power to borrow.

9.—(1) The Corporation may (in addition to the other sums which they are authorised to raise) borrow or raise at interest for and in connection with the purposes mentioned in the first column of the following table any sums of money not exceeding in the whole the respective sums mentioned in the second column thereof and shall repay all moneys so borrowed within the respective periods mentioned in the third column thereof (namely) :—

1 Purposes.	2 Amount.	3 Period for repayment calculated (unless otherwise stated) from date or dates of borrowing.
(a) The purchase of land for the purposes of this Act.	The sum requisite.	Sixty years.
(b) The construction of the street improvement authorised by this Act.	£ 3,300	Thirty years.

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1 Purposes.	2 Amount.	3 Period for repayment calculated (unless other- wise stated) from date or dates of borrowing.
(c) The extension and improve- ment of the Cottingham pump- ing station of the Corporation in the urban district of Cottingham and the deepening and extension of the shafts and adits in connec- tion therewith.	£ 250,000	Fifty years.
(d) The payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The Corporation may also with the consent of the Minister of Health borrow such further money as may be necessary for any of the purposes of this Act.

Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the said Minister.

10.—(1) The Corporation may raise all or any of the moneys which they are authorised to borrow by the creation and issue of Hull Corporation redeemable stock in accordance with the provisions of the Hull Corporation Loans Act 1881 as amended by any subsequent Act or Order confirmed by Parliament or by any of the methods provided by the Local Loans Act 1875 or by mortgage: Mode of borrowing.

Provided that the provisions of the Kingston upon Hull Corporation Act 1901 relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

(2) The contributions to the sums directed by the said Act of 1881 to be carried to the Hull Corporation loans fund in respect of interest on and of redemption of stock shall be payable out of the funds and rates following (that is to say):—

- (a) As to stock created and issued for the purposes (a) and (b) mentioned in the section of this Act whereof the marginal note is “Power to

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borrow" out of the district fund and the general district rate;

- (b) As to stock created and issued for the purpose (c) mentioned in the said section out of the revenue of the water undertaking of the Corporation and the borough fund and borough rate;
- (c) As to stock created and issued for the purpose (d) mentioned in the said section out of the borough fund and borough rate and the district fund and general district rate in such proportions as the Corporation may by resolution determine;
- (d) As to stock created and issued in respect of moneys raised with the consent of the Minister of Health out of such revenue fund or rate as may be prescribed by the Minister.

(3) In the case of any moneys raised under this Act by any of the methods provided by the Local Loans Act 1875 the local rate for the several purposes aforesaid shall be the revenue fund and rate out of which the contributions mentioned in subsection (2) of this section are payable.

(4) In the case of moneys borrowed on mortgage for the several purposes aforesaid the Corporation may mortgage or charge the revenue fund and rate out of which the contributions specified in subsection (2) of this section would be payable if the moneys were raised by stock :

Provided that the provisions of this subsection shall not limit the powers conferred upon the Corporation by section 152 (Power to use one form of mortgage for all purposes) of the Kingston upon Hull Corporation Act 1903.

Return to
Minister
of Health
with
respect to
repayment
of debt.

11.—(1) The town clerk of the city shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the treasurer of the city or other the chief accounting officer of the Corporation and shall be transmitted within one month

after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

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(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) The provisions of this section shall extend and apply to any annual returns required to be made to the Minister with regard to the repayment of debt by any provisions of any Acts or Provisional Orders now in force in the city or by any regulations made thereunder notwithstanding anything contrary to or inconsistent therewith in any such Act Order or regulation.

PART IV.

MISCELLANEOUS.

12. The powers of the Corporation with reference to the making of byelaws under Part II. (Telegraph &c. wires) of the Public Health Acts Amendment Act 1890 are hereby extended so as to enable the Corporation to make alter and repeal byelaws for the prevention of danger or obstruction to the public from posts wires tubes aerials or any other apparatus in connection with

Byelaws
as to wires
&c. con-
nected with
wireless in-
stallations.

A.D. 1925. — For or for the purposes of wireless telegraphy or telephony installations stretched or placed whether before or after the passing of this Act above over along or across any street in the city or in such position above or over any building or other erection or garden or other place in the city as to be liable to fall on to any street.

Prevention
of overflow
of River
Hull.

13.—(1) The Corporation may by notice in writing require the owner of any land within the city adjoining the River Hull to execute within such period as may be named in the notice not being less than one month from the service thereof such works or repairs upon such land as they may consider necessary to prevent the overflow of the river.

(2) If the owner of any such land shall fail to comply with the requirements of a notice under this section the Corporation may do such things as may be necessary to comply therewith and for that purpose may after giving two days' notice to the owner and occupier of the land enter upon the land and all expenses incurred by them under or in pursuance of this section shall be repaid to them by such owner.

(3) The Corporation shall not serve any notice under this section requiring the owner of any such land to make his bank higher than a level ascertained by drawing an imaginary line between a point 16.50 feet above Ordnance datum at the mouth of the River Hull and a point 15.00 feet above Ordnance datum at the point where the River Hull enters the city on the north.

(4) The Corporation shall not serve any notice under this section upon the owners of banks within the jurisdiction of the Holderness Drainage Trustees until they have informed such trustees in writing addressed to their clerk of their intention to serve such notice and the Holderness Drainage Trustees have for one month from the receipt of such information failed to serve a notice upon the owners concerned to do the necessary repairs or amendments or unless having served such notice the Holderness Drainage Trustees shall fail within a reasonable time to enforce compliance with such notice or themselves to effect the repairs or amendments in default of the person or persons liable in pursuance of their powers in that behalf.

Within the said period of one month from the receipt of such information as aforesaid the Holderness

Drainage Trustees shall inform the Corporation by writing to their town clerk whether or not they are proceeding to serve a notice on the owners concerned. A.D. 1925.
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(5) Nothing in this section shall empower the Corporation to require the London and North Eastern Railway Company to raise the levels of the existing dock walls and dock entrances and with regard to the railway company's other property adjoining the river they shall only be liable to raise and maintain the flood banks in accordance with the levels set out in this section.

14. When there is no stipendiary magistrate for the city the following provisions shall apply—

Provisions
in absence
of stipen-
diary
magistrate.

- (1) A person aggrieved by a decision of the Corporation under section 103 (Apportionment of private improvement expenses) of the Hull Extension and Improvement Act 1882 may require the question to be referred to arbitration if within twenty-one days after notice in writing of such decision has been given to him he gives written notice of such requirement to the Corporation and in such notice states the grounds of his objection;

In the event of any such notice being served upon the Corporation they shall apply to the Minister of Health to appoint an arbitrator to determine the matter of all objections of which notice shall have been given and the arbitrator shall have the powers of a police magistrate under subsection (3) of the said section 103 :

- (2) Any question which under the provisions of section 30 (For benefit and protection of Corporation) of the North Eastern Railway (Hull Docks) Act 1893 or of section 21 (Level crossings) of the Hull Joint Dock Act 1899 is to be referred to the stipendiary police magistrate of Hull for his determination direction or permission shall be referred to arbitration under the Arbitration Act 1889 the arbitrator being appointed in the absence of agreement by the Minister of Transport;

The arbitrator to whom any question is referred under this subsection shall have the

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Corporation Act, 1925.

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powers of the stipendiary police magistrate
under the said provisions.

Incorporation of
sections from
existing
Acts.

15.—(1) The following sections of the Acts herein-
after mentioned shall so far as they are applicable for
the purpose extend and apply with the necessary
modifications to and in relation to this Act and be
incorporated with and form part of this Act (that is
to say):—

The Public Health Act 1875—

Section 265 (Protection of local authority and
their officers from personal
liability):

The Kingston upon Hull Corporation Act 1897—

Section 42 (Correction of errors &c. in deposited
plans and book of reference);

Section 44 (Persons empowered by Lands
Clauses Acts to sell lands may
grant easements &c.);

Section 47 (Provision for payment to trustees);

Section 48 (Owners may be required to sell
parts only of certain properties);

Section 54 (Protection of lenders from inquiry):

The Kingston upon Hull Corporation Act 1901—

Section 12 (Power to make subsidiary works);

Section 13 (Power to alter steps areas pipes
&c.);

Section 15 (Temporary stoppage of streets);

Section 17 (Corporation empowered or may be
required to underpin or otherwise
strengthen houses near works);

Section 19 (For protection of gas companies);

Section 23 (Power to retain sell &c. lands);

Section 24 (Proceeds of sale of surplus lands);

Section 26 (Provisions as to compensation);

Section 48 (Provisions of Public Health Act as
to mortgages);

Section 49 (Mode of payment off of money
borrowed);

Section 50 (Sinking fund):

The Kingston upon Hull Corporation Act 1903—

Section 162 (Expenses may be declared private
improvement expenses);

Section 172 (Informations by whom to be laid):

The Kingston upon Hull Corporation Act 1906— A.D. 1925.

- Section 72 (Application of money borrowed);
- Section 74 (Corporation not to regard trusts);
- Section 75 (Certain regulations of Public Health Act 1875 as to borrowing not to apply);
- Section 76 (Appointment of receiver);
- Section 78 (Expenses of execution of Act);
- Section 81 (Recovery of penalties);
- Section 83 (Audit of accounts):

The Kingston upon Hull Corporation Act 1907—

- Section 22 (Recovery of demands);
- Section 23 (Saving for indictment &c.);
- Section 24 (Powers of Act cumulative):

The Kingston upon Hull Corporation Act 1922—

- Section 10 (Extinction of private rights of way); and
- Section 31 (Inquiries by Minister of Health).

(2) Provided that—

- (a) In the application of section 48 of the said Act of 1897 the premises described in the schedule to this Act shall be deemed to be referred to instead of the premises described in the third schedule to that Act;
- (b) Section 15 of the said Act of 1901 shall apply only in reference to the work authorised by Part II. (Lands and Streets Improvement) of this Act;
- (c) Section 26 of the said Act of 1901 shall be read and have effect as if the twentieth day of November nineteen hundred and twenty-four were therein mentioned instead of the first day of June nineteen hundred and one;
- (d) The Corporation shall not under any provision incorporated by this section alter or otherwise interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except under and subject to the provisions of the said Act.

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Crown
rights.

16. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation or any other body or person to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or of the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose.

For pro-
tection
of naviga-
tion and
other public
rights below
high water
mark.

17. The Corporation shall not nor shall any other body or person under the powers of this Act construct on over or under the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high water mark of ordinary spring tides any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Corporation or any other body or person shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval. If any work be commenced altered extended or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the owner of such work and the amount of such costs and charges shall be a debt due from the owner of such work to the Crown and shall be recoverable as a Crown debt or summarily.

Costs of
Act.

18. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough

fund and borough rate and the district fund and general district rate in such proportions as the Corporation may by resolution determine or out of money to be borrowed under this Act for that purpose. A.D. 1925.
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The SCHEDULE referred to in the
foregoing Act.

LIST OF PROPERTIES OF WHICH PARTS ONLY MAY
BE TAKEN.

Work	No. on deposited Plans.
Work No. 9 - . -	1 to 63 65 66 68 70 to 73 75 to 81 88 92 93 96.

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